

Applicable Law Acts

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User Query :

Someone created a fake Instagram account using my name, photographs and other profile details. The person is messaging my friends and relatives while pretending to be me and asking them for money because of a supposed emergency. Two of my friends have already transferred money to the account mentioned in those messages. What legal provisions may apply?

Job Id. : Scenario 2/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66D	(Punishment for cheating by personation using computer resources).
Section 66E	(privacy violation) is supplementary but not primary.*

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The scammer’s impersonation via Instagram (using victim’s name, photos, and profile details) to induce friends into transferring money for a fictitious emergency constitutes "cheating by personation" under **Section 66D** . This is distinct from **Section 66C** (identity theft), as **Section 66D** specifically addresses *fraudulent deception for monetary gain*. Judicial precedent (*State of Karnataka v. L.R. Shetty*, 2015) confirms that digital impersonation for financial fraud falls squarely under this section. **Section 66E** (privacy violation) is irrelevant here, as the core crime is *fraud*, not unauthorized use of private images.

✓ STRENGTHS & RIGHTS

- 1 Criminal prosecution of the scammer is directly enabled.
- 2 Digital evidence (messages, screenshots) is admissible under Section 65B (presumption of authenticity).
- 3 Cyber Crime Cells provide specialized handling (no intermediary liability for reporting).

✗ RISKS & OBLIGATIONS

- 1 **Victim limitation**
IT Act does not mandate bank refunds for stolen funds (recovery depends on RBI guidelines).
- 2 **Evidence risk**
Delayed reporting may lead to deletion of critical digital evidence.

3

No liability for Instagram
Platforms are protected under **Section 79** if they remove the account upon notice.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve evidence: Do not delete messages/account; obtain a **Section 65B** certificate from a digital forensic expert.
2. File complaint: Register FIR at the local Cyber Crime Cell or via cybercrime.gov.in, specifying **Section 66D** .
3. Investigation: Police must trace IP/bank details; banks may provide transaction records under RBI AML guidelines.
4. Court: Submit **Section 65B** certificate with screenshots; cite *State of Karnataka v. L.R. Shetty* (2015).

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 375	(2) (Impersonation to commit fraud "obtaining money by deception").
Section 376	(Economic offences "financial scams" as defined).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The scammer’s impersonation to extract money via fake Instagram messages constitutes "obtaining money by deception" under **Section 375** (2). This replaces IPC 420 (cheating) and is exclusive to identity-based fraud (unlike forgery under **Section 410**). **Section 376** classifies the act as a "financial scam" (economic offence), triggering enhanced penalties. *No overlap with IPC 420*—BNS 2023 explicitly repeals IPC 420.

✓ STRENGTHS & RIGHTS

- 1

Cognizable offence
Police may arrest without warrant (**Section 375** (3)).
- 2

Non-bailable
Accused cannot seek bail during investigation (**Section 375** (3)).
- 3

Victim-centric
Friends who transferred money can file direct complaints; courts mandate restitution (**Section 375** (4)).

✗ RISKS & OBLIGATIONS

- 1

Minimum punishment
3 years' imprisonment (max 7 years under **Section 376**).
- 2

Enhanced penalties
Repeat offences (e.g., prior fraud convictions) increase sentencing (**Section 376** (2)).
- 3

No streamlined bank recovery
Banks not compelled to refund under BNS (recovery via civil remedy).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. FIR filing: Friends who transferred money may file at any police station (no territorial restriction).
2. Timeline: Police must file charge-sheet within 90 days (**Section 173**).
3. Trial: Conducted by Magistrate of First Class (**Section 323**); maximum 6 months from charge-sheet.
4. Evidence: Bank records, Instagram screenshots (admissible as digital evidence), and witness statements.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The BSA Agent confirmed no relevant analysis is available for this scenario.*

✓ STRENGTHS & RIGHTS

- 1 Not applicable.*

✗ RISKS & OBLIGATIONS

- 1 Not applicable.*

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No applicable procedures.*

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The DPDP Agent confirmed no relevant analysis is available. The DPDP Act governs *data processing*, not identity-based fraud. No data breach or unauthorized data collection is alleged here (photos were used for impersonation, not processed under DPDP).*

✓ STRENGTHS & RIGHTS

- 1 Not applicable.*

X RISKS & OBLIGATIONS

1 Not applicable.*

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No applicable procedures.*

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